



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001

(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Connor White
Subject: PUDC-24-121 | Lot 1, Block 1 Wyodigs Properties Subdivision – Zoning Map Amendment
Date: August 12, 2024

Background:

The item for consideration is a *Zoning Map Amendment (zone change)*. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 08/12/2024
- Public Services Committee 08/20/2024
- Second reading 08/26/2024
- Public Services Committee 09/04/2024
- Third and final reading 09/09/2024

Planning Commission Recommendation:

The Planning Commission heard this item at their August 5, 2024 meeting and recommended the Governing Body approve this application.

The Planning Commission Staff report is attached and has not been changed.

Attachments:

1. Ordinance
2. Planning Commission Staff Report

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING THE OFFICIAL ZONING MAP OF THE CITY OF CHEYENNE CHANGING THE ZONING CLASSIFICATION FROM LI LIGHT INDUSTRIAL TO CB COMMUNITY BUSINESS FOR LAND LOCATED NORTHEAST OF THE INTERSECTION OF HUTCHINS DRIVE AND INDUSTRY DRIVE."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owner(s) of the property described herein has (have) applied for a zoning map amendment for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code ("UDC").

Section 2. That on August 5, 2024, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zoning map amendment that is the subject of this ordinance, and recommended approval of said zoning map amendment.

Section 3. That the Governing Body of the City of Cheyenne finds that the zoning map amendment that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved and the zoning classification of the real property described as Lot 1, Block 1 Wyodigs Properties Subdivision, Cheyenne, Wyoming, is hereby changed to CB Community Business.

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in Section 5.1.3 of the UDC to comply with the zoning map amendment as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon its approval and publication of this ordinance and recording of the associated Plat.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KRISTINA F. JONES, CITY CLERK

Published: _____
Wyoming Tribune-Eagle



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001

(Phone) 307-637-6282 (Fax) 307-637-6366

CITY OF CHEYENNE PLANNING COMMISSION

AUGUST 5, 2024

STAFF REPORT

FILE: UDC-24-121: Lot 1, Block 1 Wyodigs Properties Subdivision – Zoning Map Amendment (zone change)

REQUEST: A request to rezone approximately 3.96 acres of land from LI Light Industrial to CB Community Business.

LOCATION: Northeast of the intersection of Hutchins Dr. and Industry Dr.

APPLICANT: Dawn Willhelm, Inberg Miller

AGENT: Dawn Willhelm, Inberg Miller

OWNER: Carter and CO LLC

ZONING: LI Light Industrial

FUTURE LAND USE: Mixed-use Employment

PURPOSE: To allow a dog wash within a proposed Tractor Supply.

PREPARED BY: Connor White, Planner II



RECOMMENDED MOTION:

Move to **approve** the rezoning of Lot 1, Block 1 Wyodigs Properties Subdivision to CB Community Business as shown in the attached zone change map, noting that the project meets the review criteria for approval.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.2.1 Zoning Map Amendment
- UDC Article 5
- PlanCheyenne

BACKGROUND:

This zone change application proposes changing the zoning from LI Light Industrial to CB Community Business for roughly 3.96 acres of land. The land is currently vacant. The proposed development is a Tractor Supply and they would like to have a dog wash facility as part of their business which is not permitted within the LI zone.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning District	Land Use
Subject Site	Mixed-use Employment	LI Light Industrial	Vacant
North	Mixed-use Employment	LI Light Industrial	Manufacturing
South	Community Business	AG Agricultural	Vacant / Agriculture (across I-80)
East	Mixed-use Employment	LI Light Industrial	Truck Center
West	Mixed-use Employment	LI Light Industrial	Manufacturing

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Zoning Map Amendment, the Commission must make the following findings required in UDC 2.2.1.d. A detailed analysis is below:

1) The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan. (UDC 2.2.1.d.1)

PlanCheyenne encourages growth within the Urban Service Boundary and the maximization of existing infrastructure. This property is within the Urban Service Boundary, in an area with existing infrastructure.

The Future Land Use Designation for this property is Mixed-use Employment and the surrounding area is largely Mixed-use Employment. Further to the south and west the land is designated Community Business and further to the north the land is designated Industrial. The

Mixed-use Employment designation is a transition from Community Business to Industrial in this area, and a mix of lighter industrial and commercial uses are appropriate. According to the comprehensive plan the optimal City zones for the subject property's future land use designation is Mixed-use Employment; however the Mixed-use Employment zone is set up for a campus-like atmosphere and this area of the community does not have a campus-like industrial park. Secondary zones that would be appropriate to the uses anticipated by the comprehensive plan would include both CB and LI zoning.

Based on the policies and future land use map, CB zoning is appropriate at this location.

The proposed zone change **complies** with review criterion 1.

- 2) The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas; (UDC 2.2.1.d.2)**

The proposed CB zone would match commercial zoning in the area. A node of CB zoning is less than 1000' away to the west. The surrounding zoning is LI, which has similar setbacks, and height allowances. The LI zone allows for limited commercial uses and prohibits the most intense industrial uses. The CB zone would be compatible with surrounding zoning.

The proposed zone change for the subject property **complies** with review criterion 2.

- 3) The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district (UDC 2.2.1.d.3)**

The LI zone allows more industrial-style uses and fewer commercial-style uses. The CB zone allows more commercial-style uses, but is much more restrictive on industry. These zones have some overlap, and some of the existing uses in the area could exist in either zone. These zones are both already in the area.

The applicant is requesting a change to CB because they would like to add a dog washing facility to their proposed development. All other uses for the development are permitted within the existing LI zone.

The proposed zone change **complies** with review criterion 3.

- 4) The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning (UDC 2.2.1.d.4)**

The zone change is occurring in a pre-existing neighborhood. No changes to the street network are proposed. Accesses will not be changed with the zone change. Infrastructure (streets and utilities) exist in the area.

The proposed zone change for the subject property **complies** with review criterion 4.

5) The ability of the application to support the Intent and Applicability statements of the proposed zoning district and achieve the Design Objectives of any specific standards. (UDC 2.2.1.d.5)

The CB zone is intended for larger commercial uses serving the community as a whole and is applicable in activity centers or other areas where regional-serving commercial uses are anticipated. Internal circulation between adjacent sites is encouraged. The CB zone applies commercial design standards.

This property is near to other CB zoned parcels, and is in an area with ready access to regional transportation routes. The proposed facility is a regional-serving commercial facility. The proposal meets the intent and applicability of the CB zone.

The proposed zone change for the subject property **complies** with review criterion 5.

6) The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options if any specific development proposed in association with the application is not executed after approval. (UDC 2.2.1.d.6)

The CB zone allows a variety of Commercial Uses and some Limited Industrial uses. Should the proposed development not move forward, another commercial development could use the property.

The proposed zone change **complies** with review criterion 6.

7) The review and recommendations of other reviewing bodies. (UDC 2.2.1.d.7)

No major comments received in regard to the proposed zone.

The proposed zone change for the subject property **complies** with review criterion 7.

8) Whether the application will harm the public health, safety, or general welfare. (UDC 2.2.1.d.8)

City staff is satisfied that this proposed zone change would not adversely affect the public health, safety, or general welfare.

The proposed zone change for the subject property **complies** with review criterion 8.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- PlanCheyenne

Conformance with PlanCheyenne is covered by review criterion 1.

STAFF REVIEW:

Through the review process, review comments were received expressing the appropriateness of the CB zone at this location.

CONCLUSION:

Staff is satisfied that the application meets the review criteria set forth in UDC 2.2.1.(d). The CB zone is appropriate based on the future land use map, surrounding zoning, surrounding development patterns, and proposed development.

ALTERNATIVES:

1. Recommend approval of the zoning amendment as submitted by the applicant (**Staff Recommendation**).
2. Recommend approval of the zoning amendment subject to conditions or modifications.
3. Recommend denial of the zoning amendment based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the zoning amendment until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

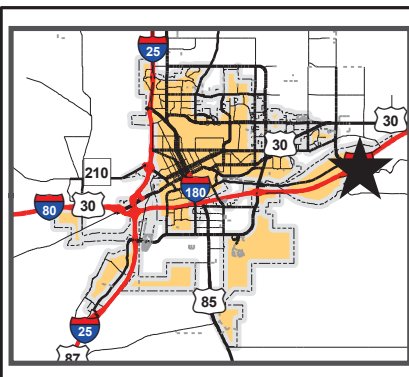
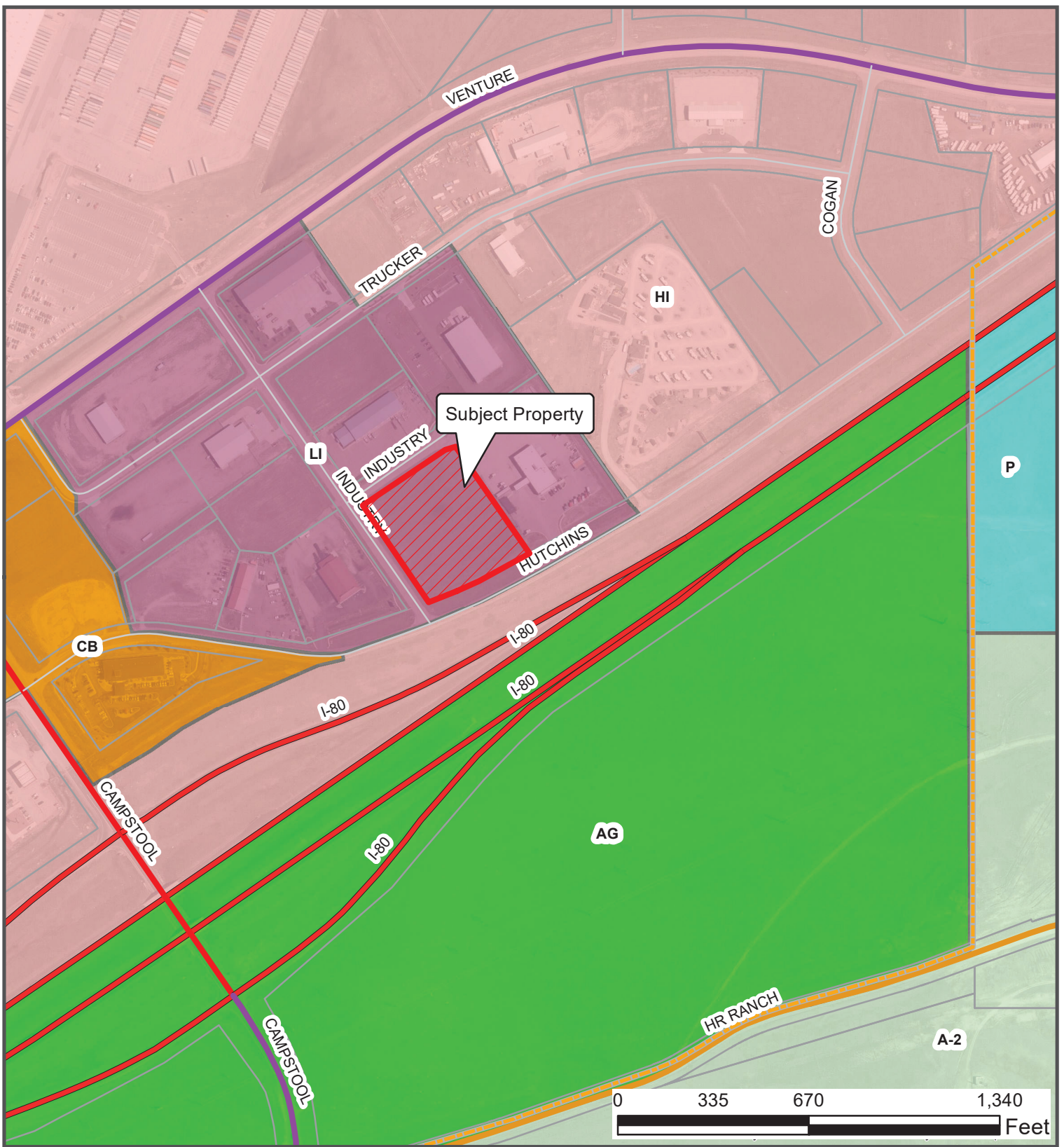
If the Commission acts contrary to staff's recommendation or modifies conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

STAFF RECOMMENDATION:

Staff recommends approval of the rezoning of the property from LI to CB.

ATTACHMENTS:

1. Current Zoning Map
2. Future Land Use Map
3. Master Application
4. Applicant Provided Zone Change Map
5. Differences in uses per zone

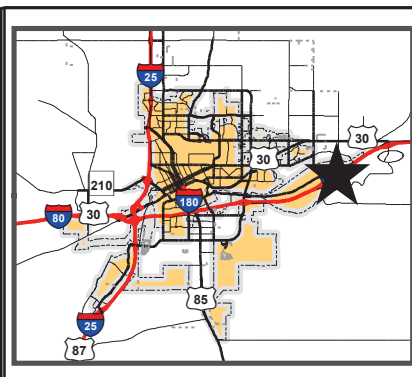
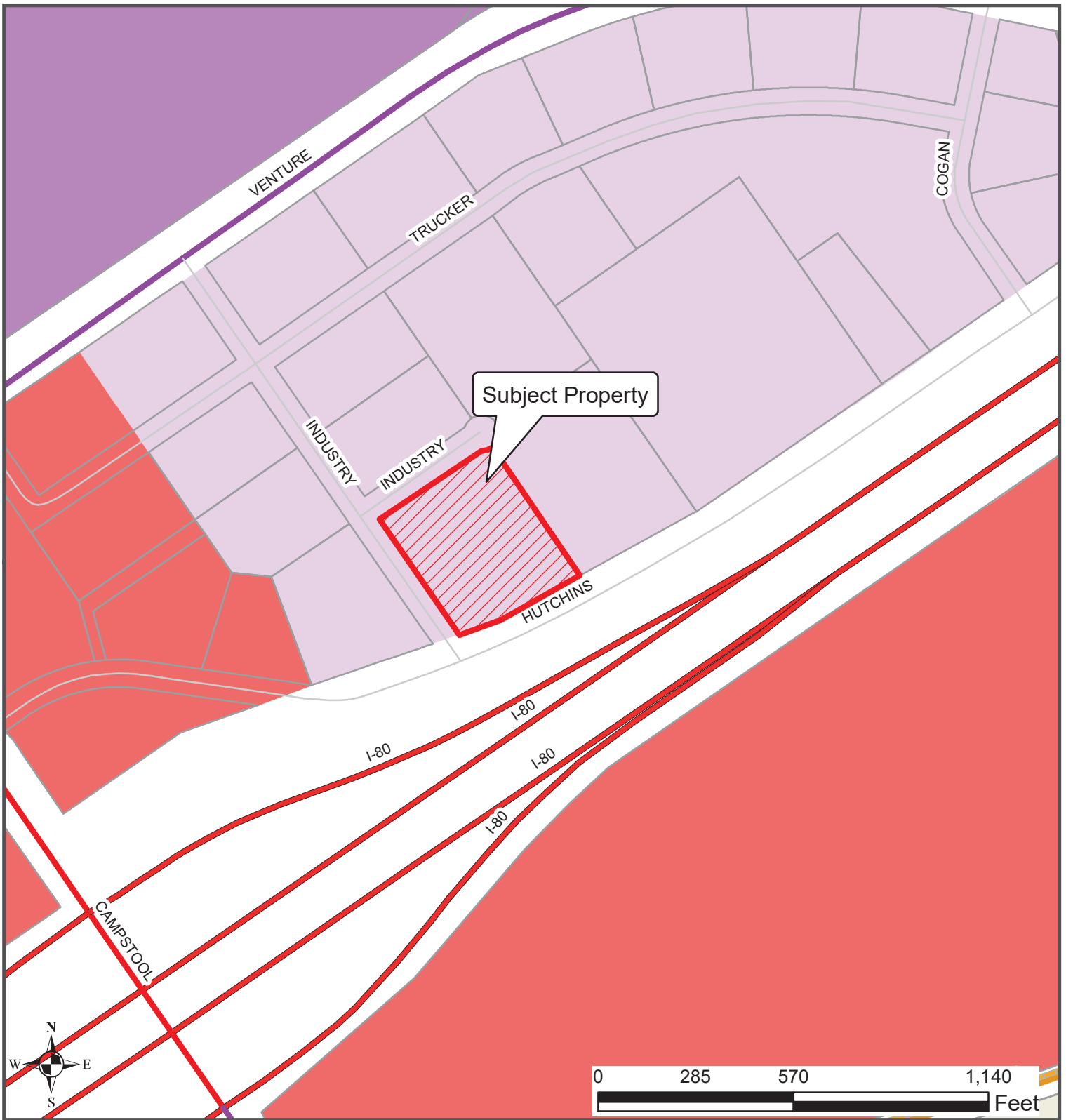


Attachment 1: Zoning Map PUDC-24-121

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

	Nov19_CityLimits		A-1 / Agricultural and Rural Residential
	Interstate		A-2 / Agricultural
	Principal Arterial		AG / City Agricultural
	Minor Arterial		MUR / Mixed Use Residential Emphasis
	Major Collector		CBD / Central Business District
	Minor Collector		CB / Community Business
	Local		NB / Neighborhood Business
	Private		MU / Mixed Use - County
	Platted not built		MUB / Mixed Use Business Emphasis
	HR / High Density Residential		MUE / Mixed Use Employment Emphasis
	MR / Medium Density Residential		HI / Heavy Industrial
	LR / Low Density Residential		LI / Light Industrial
	NR-2 / Neighborhood Residential - Med. Density		P / Public
	NR-3 / Neighborhood Residential - High Density		AD / Airport District
	AR / Agricultural Residential		PUD / Planned Unit Development
			X / Exempt



Attachment 2: Land Use Map PUDC-24-121

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

City Limits	Agricultural/Rural	Industrial
Interstate	Rural Residential	Central Business District
Principal Arterial	Urban Transition Residential	Community Business
Minor Arterial	Urban Residential	Public and Quasi-Public
Major Collector	Mixed-Use Residential	Military/Federal
Minor Collector	Mixed-Use Commercial	Open Space and Parks
Local	Mixed-Use Employment	
Private		
Platted not built		
Ownership		



Cheyenne, WY

July 29, 2024

PUDC-24-121**Zoning Map Amendment**

Status: Active

Submitted On: 7/10/2024

Primary Location0 INDUSTRY DR
Cheyenne, WY 82007**Owner**CARTER AND CO LLC
1106 ALYSSA WAY CHEYENNE,
WY 82009**Applicant** Dawn Willhelm
 307-856-8136
 dwillhelm@inberg-
miller.com
 124 East Main Street
Riverton, WY 82501

Application

This application has a deadline. The deadline is the second Wednesday of the month. Application Schedule.

Project Name* ?

Reese Real Estate Dev

Proposed Zoning* ?

CB Community Business

Review Criteria

The following review criteria are found in the UDC regarding a zoning map amendment. Please acknowledge the proposed zoning map amendment meets each review criterion by checking the box.

The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan (2.2.1.d.1).*



The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas (2.2.1.d.2).*



The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district (2.2.1.d.3).*



The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning (2.2.1.d.4).*



The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards (2.2.1.d.5).*



The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval (2.2.1.d.6).*



The review and recommendations of other reviewing bodies (2.2.1.d.7). (Not applicable at time of application)

Whether the application will harm the public health, safety, or general welfare (2.2.1.d.8).*



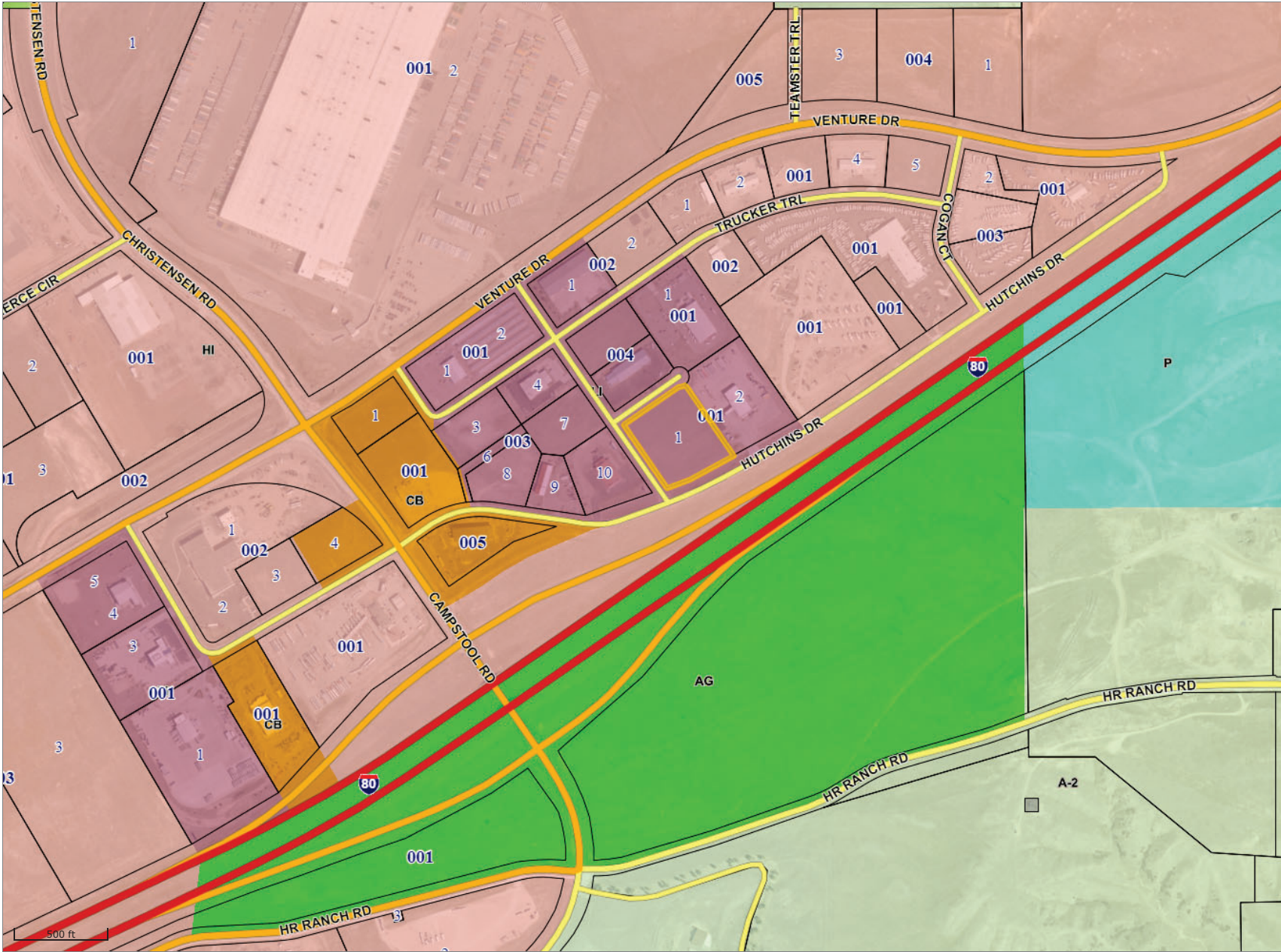
Certification

I hereby certify that I am the owner, applicant, or agent named herein and that I have familiarized myself with the rules and regulations with respect to the filing of this application and that the foregoing statements and answers contained on this application and accompanying documents are true and accurate to the best of my knowledge.*



Christina Dawn Willhelm

Jul 10, 2024



Laramie County Wyoming MapServer

Lot 1, Block 1
WYODIGS Properties Subdivision

- Interstate
- Major Road
- imps only
- HR
- MR
- LR
- NR-2
- NR-3
- AR
- A-1
- A-2
- AG
- MUR
- CBD
- CB
- NB
- MU
- MUB
- MUE
- HI
- LI
- P
- AD
- PUD
- X



This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, and makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.
printed 7/2/2024

City LI - LIGHT INDUSTRIAL
<i>Uses By Right</i>
Animal Care - Kennel
Entertainment, Indoor Recreation Facility
Mini Storage
Home occupations
Office – Limited (<3,500)
Office – general (3,500 – 20K)
Office – Major Office Complex (>20K)
Convenience Retail / Corner Store (<2k)
Neighborhood Retail (2K - 5K)
General Retail (5K - 25K)
Large-scale Retail (25K - 100K)
Warehouse Retail (> 100K)
Grocery Store <45K
Supermarket > 45K
Automobile Service Repair
Automobile Service Station - Limited
Automobile Service Station - General
Data Center
Limited Industrial
Moderate Industrial
Limited Outdoor Storage
Impoundment Yards
Railroad yards and maintenance buildings
Government Facility
Recycling Services
Transportation facilities
Nurseries, landscaping
<i>Uses requiring Administrative approval</i>
Utility Stations

City CB - COMMUNITY BUSINESS
<i>Uses By Right</i>
Live/Work
Mixed-use Dwelling
Educational facilities
Service Business - Limited
Service Business - General
Animal Care - Kennel
Animal Care – Hospital / Clinic
Child Care, In Home - Minor
Child Care, In Home - Major
Child Care, Center - Minor
Child Care, Center - Major
Emergency Shelter
Entertainment, Indoor Recreation Facility
Lodging, Hotel / Motel
Medical Care, Clinic and Office
Mini Storage
Home occupations
Office – Limited (<3,500)
Office – general (3,500 – 20K)
Office – Major Office Complex (>20K)
Convenience Retail / Corner Store (<2k)
Neighborhood Retail (2K - 5K)
General Retail (5K - 25K)
Large-scale Retail (25K - 100K)
Warehouse Retail (> 100K)
Grocery Store <45K
Supermarket > 45K
Outdoor Sales, Limited
Automobile Service Repair

<i>Uses requiring Board Approval (Conditional Use)</i>
Group Housing
Neighborhood Assembly (<350 maximum occupancy)
Community Assembly (350 - 1000 maximum occupancy)
Cemeteries
Developed Athletic Field or Stadium
Emergency Shelter
Entertainment, Outdoor Recreation Facility
Entertainment, Venue (1000+ maximum occupancy)
Entertainment, Amusement, Recreation—Other
Storage, Yard
Outdoor Sales
Automobile Service Station – Large-scale
General Industrial
Outdoor Storage
Salvage yards

<i>Uses By Right</i>
Automobile Service Station - Limited
Automobile Service Station - General
Food Service – Limited (under 2K)
Food Service – General (2K – 4K)
Food Service – Large-scale (over 4k)
Government Facility
<i>Uses requiring Administrative approval</i>
Neighborhood Assembly (<350 maximum occupancy)
Community Assembly (350 - 1000 maximum occupancy)
Cemeteries
Primary and secondary schools
Community Athletic Field
Entertainment, Venue (1000+ maximum occupancy)
Outdoor Sales, Seasonal
Outdoor Sales, Event or Display Area
Limited Industrial
Utility Stations
<i>Uses requiring Board Approval (Conditional Use)</i>
Group Housing
Multi-dwelling Building (“Apartment”)
Urban Loft Building
Developed Athletic Field or Stadium
Assisted Living / Nursing Home
Entertainment, Outdoor Recreation Facility
Entertainment, Amusement, Recreation—Other
Outdoor Sales
Automobile Service Station – Large-scale
Data Center
Recycling Services
Transportation facilities
Nurseries, landscaping